G. C. E (Advanced Level) Examination - 2019

23 - Political Science – (New Syllabus)

Marking Scheme

Paper I

Paper 1 has two parts, A and B.

Paper 1 Part A

Time: 02 Hours

There are 30 Multiple Choice Questions, each with five choices. Candidates should answer all questions.

Each question carries 02 Marks with a total of 60 Marks.

Paper 1 Part B

There are 20 Short Questions. All questions should be answered. Each question carries 02 Marks with a total of 40 Marks.

Total Marks for Paper I is 100.

Paper II

Time: 03 Hours

Paper II has three papers, A, B, and C.

Candidates should answer 05 Questions, selecting at last one question from Part I, two questions from Part II, and one question from Part III.

Part I has 03 essay type questions.

Part II has 04 essay type and semi-structured questions.

Part III has 03 essay type and semi-structured questions.

Total marks for Paper II is 100

Calculation of Final Marks

Paper I – 100

Paper II – 100

Final Mark = 200/2 = 100

Instructions for Examiners

This book contains model answers prepared by the Board of Examiners for Papers I and I for No. 23 Political Science –New Syllabus for the G. C. E (A/L) examination haled in August 2019. They provide guidelines for examiners in marking answer scripts.

The model answers prepared for Paper II content only the basic facts and points relevant to the questions asked. If a candidate has provided additional facts, information and analysis, examiners should take them also into account in awarding marks. Examiners should specifically pay attention to the following in allocating Marks.

(a) Has the candidate understood the question correctly? This can be judged by the 'introduction' and approach.
(b) Has the candidate identified the relevant facts correctly, and organized and presented them systematically?
(c) Are the facts adequately analyzed?
(d) Is there a conclusion as the end of the answer, and is the conclusion logical and substantial?

In instances where there are questions or doubts about the facts provided by candidates, please bring them to the attention of the Chief Examiner before taking a decision.

Objectives of Question Papers

Paper I

Paper I has two parts, A and B, covering the entire Syllabus

Part A has 30 Questions, each with 05 choices.
Part B has 20 Questions, each with 02 answers.

The objective of these two parts is to assess the factual knowledge of candidates.

Paper II

This paper has 03 Parts and 10 Questions.

Questions of Part I intends to assess the knowledge and understanding among candidates of theories in the field of Political Science and their application. Thus, some questions will examine candidate's theoretical knowledge while the others will assess the relationship between theory and practice.

Questions of Part II seek to assess the candidates' knowledge and understanding of Sri Lanka's colonial transformation as well as changes in the governance and constitutional structures, brought about by the economic, social, administrative, and political reforms implemented during the British colonial rule.

Questions of Part III will assess the candidates' knowledge and understanding of themes in comparative government, Sri Lanka's foreign policy in the context of changing dynamics of global politics and on a few specific and brief topics that represent the whole syllabus.

NOTE: Pease do not consider the answers developed below for Part II as model answers. They contain only basic points and information relevant in answering the essay-type and semi-structured questions.

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PART I

1. **Politics is a social practice." Explain.**

Objective

This question seeks to assesses the candidates' understanding about politics which is not confined to the spheres of state and government, but also a process in which the citizens too actively participate outside the state and in their social relations and interactions.

Introduction (03 Marks)

Traditionally, politics was understood and explained as a process of the state and government. This approach did not make room for brining politics that take place outside the state and government to the scope of political science inquiry. Therefore, contemporary approach to politics is that while the domain of the state is important for politics, politics also takes place outside the sphere of state, and in society, in many ways. Thus, politics can be seen as a social practice among citizens too.

Discussion (14 Marks)

- One key meaning of the statement that 'politics is a social practice' is that politics is not a vocation confined only to professional politicians. Politics is regularly practiced by citizens. It is a part of their social life.
- For example, they vote at elections; join political parties, attend party meetings, rallies, protests and demonstrations. They also discuss politics with fellow citizens as well even within the family and in the neighborhood. In doing so, people exchange political information, engage in political communication, and contribute to the society's level of political awareness and alertness.
- Voting is the most important political activity which citizens perform as a social practice in a democratic society. It is a social activity, because it is part of the society's political culture and the citizens' value system. Thus, it is a collective social practice.
- By voting, citizens perform two crucial political functions. The first is electing a government to govern themselves and the society of which they are members. The second is the authoring the rulers to rule themselves and the society. The first is our 'elective task' as citizens. The second is our 'authorizing task.'

- Citizens' relationship with the state is usually an indirect one. It is the professional politicians and government officials who have and maintain direct links with the state.
- In practicing politics outside the state and at the level of society, citizens also become active at the level of civil society politics.
- Civil society is the sphere in which citizens have their own voluntary citizens' associations to look after the well-being and welfare of their fellow citizens, independent of the state. They range from associations of welfare, social service, mutual help culture, religion, sports etc.
- In these civil society associations too, citizens practice micro-level politics that make citizens active citizens. By active in these associations, citizens also learn democracy. Thus, the local level civil society function as a training ground for democratic citizenship.
- Here, candidates can give examples of citizens' political activities in society, in their neighborhoods, and in civil society.
- This discussion can also be linked to political theory, for example, the feminist theory, that argues that politics occurs in the private domain as well.

Conclusion (03 Marks)

The conclusion can summarize the above discussion and make the point that it is the citizens' participation in politics that makes politics meaningful. The political science inquiry can benefit by widening the scope of the concept of politics to include politics that occurs as a regular social practice outside the domain of the state, government, professional politicians, and state institutions.

2. "The State is the Central Institution of political power in society." Discuss.

Objective

This question seeks to assess the candidates' understanding of the state from the perspectives of political theory as well as from their own experiences and observations as members of society in which the state plays a crucial political role.

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Introduction (03 Marks)

The candidates can begin the answer by pointing out that the state is one of the oldest institutions in human society and that it is also a major theme in political theory, philosophy and inquiry. However, there is something special about the state compared with other social institutions. It is an institution that is exclusively connected with political power. No modern society can exist without a state, symbolizing, exercising and giving effect to political power.

The discussion can be organized in two parts: (1) What is so special about the state as a social institution? (ii) How does political thought/theory explain this aspect of the state?

Discussion (14 Marks)

What is special about the state?

- Every society has many political institutions performing functions relating to the larger goal of governing the people. Parliament, the cabinet, ministries, departments, bureaucracy, security forces, and local government are examples.
- Such governing functions in a society entails making laws, implementation of laws, delivery of justice, adjudication of justice, making and implementing decisions, controlling the citizens, directing the economy, ensuring well- being and welfare of citizens, and maintaining relations with other, similar societies.
- Political science classifies the functions of such governing institutions as legislative, executing, judicial, administrative, security and defence. Thus, we have in any society governing institutions dedicated to those five major functions, and we call them legislative, executive, judicial, administrative, and security.
- When they function in society as institutions of government, they constitute themselves into a larger institution and political science calls it 'the state.'
- Then, the what is the state? It is the final institutional form that all the institutions of government together and collectively take. The state is their final institutional totality. Thus, the legislature, the executive, the judiciary, bureaucracy and defence forces become organs of the state. In that sense we can get the first meaning of the statement, "The state is the central institution of political power in society.'
- If we define the above six institutions as institutions of government, they need to have some authority that enables them to carry out their functions. Without that authority,

those institutions cannot function, because the citizens will not accept them as legitimate institutions of authority.

- The answer to this questions is that they get that authority from the state. They have authority in society because (a) they are organs of the state, (b) they represent the state in society, and (c) they embody the will of the state. This is the second meaning of the statement that 'the state is the central institution of political power in society.'
- What is that particular authority of the state that these institutions of government represent in society? Political science has a term for that authority called 'Sovereignty.'
- Sovereignty is the supreme power that the state is supposed to possess in society, a power that no other institutions of governance can claim to possess. According to the democratic theory, it is actually the power of the people, which is delegated to the state. That power of the people refers to a right which the people have to govern themselves.
- Sovereignty of the state has all the functions we identified above. Each institution embodies and possesses only one aspect of that sovereign power of the people that the state carries with it.
- Thus, the state is the final institutional manifestation of all these dimensions of the sovereign power of the people. It is because of this supremacy of the state in society that people obey the state and accept the authority of the state. As citizens we obey the will of the state in our everyday life. We accept it without any serious questioning. If we defy the authority of the state, and violate its laws and rules, the state can force us to accept its will and the laws, and even punish us.
- Thus, the power and authority of the state over its citizens and institutions is an all pervasive one.

Political Thought/Theory on the state's special status

In political theory, there are different traditions that looks at this sovereignty function of the state asserting that the state is the central institution of political power in society.

Let us discuss briefly six traditions in political theory about why the state claims, and we as people accept, the centrality of the state as a political institution.

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i. Aristotelian tradition: Aristotle, the classical Greek political philosopher, said in his famous book Politics, that the state is a human association and at the same time the highest of all human associations. The reason Aristotle gave for this special status of the state among other human associations is that the state is committed to the well-being and welfare of all the people in society whereas other associations are concerned with small groups of people, like in the family, or village, or the township.

ii. Kautilya, or Chanakya in ancient India has also provided an insightful answer to our question. It is the power of the ruler, or the state, to punish the law breakers and wrongdoers. In his famous book, Arthashastra, Kautilya described this special power of the state as danda, punishment.

iii. Thomas Hobbes made a very important point that is also an answer to our question in his famous book Leviathan: the state provides security and protection to all people, without allowing the society to return to the earlier stage of lawlessness, anarchy, violence and insecurity. To ensure security of all people, the state monopolizes powers to make law, to implement them and to punch those who break the law.

iv. The liberal tradition associated with the teaching of John Locke has a different answer. It says that the state exercises the sovereignty of the people, as an agent of the people through an agreement, or a social contract. Thus, the state enjoys the people's 'consent' because it is committed to protecting the life, liberty, and property of its citizens. Therefore, the state is not supposed to violate the conditions of that consent.

v. The answer provided by Karl Marx and the Marxist political theory offers yet another answer. The peculiarity of the state is that it is a weapon in the hands of the economically powerful ruling class in society. It uses its coercive power to force people of the subordinate classes to accept its authority.

vi. Max Weber builds on Marx's insight to argue that the state's peculiarity is that it claims the monopoly of legitimate violence in society. No other organization in society has that right to monopolize violence in order to exercise its authority.

Conclusion (03 Marks)

As we can see from the above discussion, the state is also a human association in society, but it stands above all of them. Its will stands above all the other human associations. It expects everybody within the boundaries of its authority to accepts its authority and obey it. To ensure its obedience, it has laws, institutions and personnel to impose it over society. That power is the organized political power in society. Thus, the state is the central institution of organized political power in society.

3. **Compare the cabinet system of government and the presidential system of government.**

Objective

This question seeks to test the candidates' knowledge and the comparative understanding about the Cabinet form of government and the Presidential form of government. This classification is made in accordance with how the executive power is organized.

Introduction (03 Marks)

The cabinet and presidential forms of government are two most popular forms of government in the world. A cabinet government is one in which executive power is exercised by the Cabinet headed by the Prime Minister. The British and Indian systems are examples. In the Presidential form of government, the executive power is centralized in the hands of the President. The United States of America has a presidential system of government.

Discussion (14 Marks)

The following is a summary of comparison between presidential and Cabinet forms of government, around which the discussion in the answer can be organized.

- In a Cabinet system of government, the executive assumes a dual character with a nominal executive and a political executive. In the Cabinet system, the Crown, as in Britain or Australia, or President, as in India is the head of the nominal executive and Prime Minister the head of the political executive. All the executive powers are nominally vested with the nominal executive, but they are really exercised by the political executive which is also called the 'real executive.' In a presidential system, the executive is unified. In the latter, the President is the only head of the executive.

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- The Cabinet system of government is usually found in parliamentary systems.
- In the Cabinet system, members of the political executive, or the Cabinet, are chosen from the legislature. In the presidential system, members of the cabinet are chosen outside the legislature.
- In the cabinet system, the executive is collectively answerable to the legislature. In the presidential system, the President and the executive are not directly responsible to the legislature. The President is directly elected by the people and therefore directly answerable to the people. This is a principle coming from the Republican tradition which emphasizes that the head of the state should derive his/her mandate and authority directly from the people.
- In a Presidential system, the terms of office of the President and the legislature do not end simultaneously. In contrast, in the Cabinet system, the terms of office of both the real executive and the legislature end together.
- In a Cabinet system, it is possible to remove the executive from office on party political grounds. For example, when the government's Throne Speech or Policy Speech or the Budget is defeated in the legislature, the Cabinet and the Prime Minister should resign. A No-confidence motion passed in the legislature with a simple majority also leads to the resignation of the political executive. In a presidential system, President can be removed by the legislature only through the difficult path of Impeachment.
- In a Presidential system, there is a greater degree of political stability than in a Cabinet system.
- The Cabinet system is more democratic while the Presidential system can produce authoritarian governments.
- The presidential system, since the executive does not depend on the legislature for its survival can be more efficient in governance. In contrast, in the Cabinet system is often subjected to the criticism that since the executive depends on the legislature, it creates political instability.
- In the Cabinet system, the legislature, or Parliament, is supreme whereas in the Presidential system, it is not so.
- In a Presidential system, there is room for conflict between the executive and the legislature. This usually does not happen in the Cabinet system.

- In a presidential system, the President, who is the Head of the Cabinet as well as the government, is also the Head of State. It is not so in a Cabinet system, where the Prime Minister is the only head of the government, and not the Head of State.
- The Cabinet system of government requires a functioning political party system. In contrast, a presidential government can exist without a competitive party system in operation.
- In a Cabinet system, executive power is usually exercised by politically mature professional politicians. It is not so in the Presidential system. The members of the Cabinet can even be personal friends of the President and businessmen who supported him during the election campaign, as it often happens in America

Conclusion (03 Marks)

The classification of governments into cabinet and Presidential system is a theme in comparative politics. Features of the presidential and parliamentary systems as described above are pure forms of the two systems. They can vary in different contexts producing hybrid systems. For example, Sri Lanka's present constitution has created a hybrid system with features from both the Presidential and Cabinet systems

PART II

4. Discuss the Political Aspects of Colonial Transformation

Objective

The aim of this question is to assess candidates' subject knowledge and analytical views on how the European colonial rule impacted on Sri Lanka's political reforms and change. Candidates are expected to discuss the key aspects of the lasting political changes occurred during the colonial rule, focusing on the British period.

Introduction (03 Marks)

The answer can begin with a brief reference to the background of colonial rule in Sri Lanka, beginning with the Portuguese and Dutch rules. The British colonial rulers had a greater and more lasting impact on the local society than did their predecessors. The British colonizer established a new state in the colony and introduced changes in the economic, social, cultural and administrative spheres in order to achieve the objectives of transforming the island into a colony ruled by them.

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Discussion (14 Marks)

The answer can begin with a brief discussion of the following objectives of introducing reforms and making changes in political spheres of colonial Ceylon:

- The colonial rule entails changes in all aspects of the society, economy, politics and people's life in the colony.
- Colonizers usually set up at the beginning political systems in the conquered country that are like dictatorships. Later they introduced political reforms. Usually such reforms were modeled along the political system of the colonizer country. Thus, being a British colony, political and administrative reforms in colonial Ceylon followed the British model.

Political Reforms

- The Colebrooke -Cameron commission of 1833 initiated reforms in the political domain. These changes laid the foundation for the future centralized state structure in Sri Lanka.
- Colebrooke reforms also inaugurated constitutional and accountable government in Sri Lanka.
- The Colebrooke Reform also established Legislative Council in order to curtail the arbitrary powers of the Governor. This was the beginning of parliamentary and representative government in Sri Lanka.
- Political reforms introduced by Governor McCallum in 1910 introduced the principle of limited franchise as well as representative government.
- McCallum reforms also introduced the system of communal representation. This laid the foundation of communal politics, which was later to become a controversial feature of electoral political in Sri Lanka.
- Reforms introduced by Governor Manning in 1920 inaugurated the principle of territorial representation based on elections and expanded the system of representative government. Although the franchise was still limited to a very small population, it was a significant political reform.
- The introduction of universal adult franchise in 1931 culminated this reform process that began with the Colebrooke-Cameron reforms.

- Because of the expansion of the franchise and an elected legislature, political power went into the hands of ordinary people without wealth or special status. It was an important moment for democratic citizenship in a colonial society.
- The franchise-based elections also created a situation where political elites had to depend on the votes of the ordinary people. The elected political leaders had to be accountable to the people through the electoral process.
- The Board of Minister established under the Donoughmore Constitution was the forerunner to Sri Lanka's subsequent cabinet government.
- With the partial democratization of the political system during the early decades of twentieth century, there was the rise of civil society movements as well. Trade unions, women's associations, nationalist political groups, political associations, religious associations, the spread of newspapers, literacy etc., were important aspects of the development of Sri Lanka's colonial civil society.

Conclusion (03 Marks)

The 'Conclusion' can begin with a brief summary of the discussion above and then focus on the main points derived from it. For example, the following conclusions can be highlighted: (i) political and administrative unification of the island began as early as 1833, thus laying the foundation for a future centralized and unitary state in Sri Lanka, (ii) gradual democratization of the political system through reforms that introduced accountable and representative government, (iii) laying the foundation for modern democracy though the gradual expansion of the franchise right, (iv) rise of ethnic politics in response to the scheme of communal representation, and (v) opening up of the polity and the rise of civil society.

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5. Discuss any two of the following topics in relation to the Soulbury Constitution:

i. Criticisms leveled against the constitution
ii. Powers and functions of the executive
iii. Powers and functions of the legislature

Objective

This question intends to assess candidates' knowledge and understanding of the major aspects of the Soulbury Constitution as well as criticisms levelled against the Soulbury constitution. Candidates can also discuss this topic from the point of Westminster model of governance and present their own points on the limitations imposed on the legislature in making laws. Candidates are also expected to provide an account on the legislative and executive branches together with a critical assessment of their powers and functions.

5.1. Criticisms leveled against the constitution

Objective

This topic seeks to assess the candidates' familiarity with the Soulbury constitution as a whole and the knowledge of the major criticisms levelled against the Soulbury constitution.

Introduction (02 Marks)

The Soulbury Constitution introduced a parliamentary system of government, designed in line with the British Westminster model. It was also a Cabinet government, with a bicameral legislature, with a political executive headed by the Prime Minister. Despite its modern liberal democratic framework, the Soulbury Constitution came under much criticism by Sri Lanka's nationalist and Left-wing political forces.

Discussion (06 Marks)

The Soulbury constitution has been largely criticized on the grounds that it provided only the Dominion Status to Ceylon and thereby the British rulers continued to hold power and influence in the affairs of socio-political, economic and governance structures of the country. The fact that the British Crown continued to be the Head of State came under severe criticism. Critics argued that this did not mark a clear break from the colonial rule.

- This created a sense of feeling among Ceylonese that the Soulbury constitution did not grant Sri Lanka complete independence.
- The constitutional-legal framework introduced under the Soulbury constitution was largely reflected the British legal, political and value systems.
- It also provided the legal foundations for a unitary state. That created much disaffection within the Tamil minority.
- Parliament did not enjoy full sovereignty in making laws – the legislative powers were considerably curtailed by different means.
- Article 29 (1) (2) and (3) imposed restrictions on the legislative authority of parliament by making it unconstitutional to pass any law that is discriminatory of ethnic or religious minorities. From the point of view of the minorities, this this was a welcome feature of the new constitution. But it drew criticism on the argument that it curtailed the legislative sovereignty of parliament.
- Similarly, during this period, the final appellate power of the judiciary was entrusted with the Privy Council which was the supreme judicial entity for the British colonies. Thus, the Privy Council was the supreme institution of Sri Lanka's judicial system which was largely criticized by the nationalist forces.
- The Senate was an entity under the Soulbury constitution that came under heavy criticism. It was criticized as an unnecessary colonial institution. Its powers to delay legislation passed by the House of Representatives was seen as a hindrance to the powers of MPs directly elected by the people.
- The Senate did not exercise powers to prevent laws enacted by the House of Representatives, though it had powers to delay, provide advice and suggestions on proposed Bills.
- It was expected that the Senate would protect minority rights in making laws, which did not happen, and the House of Representatives was a powerful entity when compared with the Senate. However, there were instances where the Parliament enacted laws which disregarded the notion of minority safeguards. Thus, the Senate was ineffective form the point of view of the minorities too.
- Directive principles of State policies and fundamental duties were not included in the constitution to enable government which is in power to facilitate policies and programs within a framework of principles reflecting the aspirations of the people of Sri Lanka.
- Importantly, this constitution did not contain a chapter on Fundamental Rights.

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- Minority safeguards were not effective as expected which denied the expectations of Tamil minorities.
- Sinhalese nationalist groups and Left parties made the point that the British colonial rulers imposed on Sri Lanka a Parliament without sovereignty with the view of sustaining colonial power by constitutional means. Therefore, they argued for abolishing the Soulbury Constitution.
- The demand by the Tamil leaders for balanced representation as a minority safeguard was also rejected by the Soulbury Commission. As a result, the electoral system of the Soulbury Constitution came under serious criticism by the Tamils.

Conclusion (02 Marks)

The conclusion can highlight the point that although the Soulbury Constitution ended Sri Lanka's colonial rule and established a democratic system of government, it came under criticisms from many sources. The main criticism it faced was that it did not grant Sri Lanka full political independence. It is against this backdrop that the Soulbury Constitution was abolished in 1972 and the First Republican Constitution was enacted.

5.ii. Powers and Functions of the Executive

Objective

This topic intends to test the candidates' knowledge on the composition, powers and role played by the executive under the Soulbury constitution.

Introduction (02 marks)

Candidates can begin the answer stating that the Soulbury constitutions comprised of two executives – they are: Nominal Executive held by the Governor General, and the Real, or Political, Executive held by the Prime Minister and the Cabinet of Ministers. The nominal executive was nominated by the British Crown on the advice of the Prime Minister and his tenure was limited to five years. On the other hand, the real executive was appointed by the Governor General who commanded the majority of the parliament or was the leader of the winning party.

The answer can be divided into two sections, the first section could be on the Nominal Executive, and the second on the Real Executive.

Discussion (06 Marks)

Nominal Executive

- The Governor General (GG), who was the Head of the Nominal Executive, was the representative of the British Crown and performed his duties with the advice from the Crown as well as the Prime Minister. The Crown expected the Governor General to protect and promote the British interests.
- He was the Head of State and Chief of the armed forces. As the Head of State, he kept the Public Seal of the state, appointed ambassadors, and presided over ceremonial state events.
- The GG had the power to appoint the Prime Minister who commanded the majority in parliament or was the leader of the winning party.
- The GG also enjoyed the power to appoint members for the Public Service Commission, Auditor General, Attorney General, Election Commissioner, Secretary to the Parliament, and Chiefs of the Armed Forces. Importantly, the GG had the powers to remove the Chiefs of the Armed forces.
- Delivering the Thrown Speech was an important function of the Governor – General. He read a prepared speech to members of legislature when a session was opened, outlining the government's policies and programs. The Thrown Speech was usually drafted by the Prime Minister and the Cabinet.
- Further, the GG exercised powers to summon, prorogue and dissolve parliament. However, it was only a ceremonial power. He acted on the advice of the Prime Minister.
- The GG had powers sign into law Bills passed by parliament.
- The GG appointed six members for the House of Representatives and 15 members for the Senate. These were also nominal powers.
- Governor –General also had powers to appoint judges of the higher courts, members of the Judicial Service Commission and granting of pardon to convicted prisoners.

Real Executive

The Real, or the Political, Executive was headed by the Prime Minister and the Cabinet. The following are some of the powers exercised by real executive;

- Implementing laws that are enacted by Parliament
- Preparing and presenting the annual Appropriation Bill to Parliament.

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- Ensuring collective responsibility of the Cabinet to Parliament.
- Overseeing the ministries, departments and institutions coming under them.
- Providing advice to GG on important high level appointments.
- The Prime Minister, as the head of the Cabinet, had the power to advise the GG on appointing ministers and changing their ministries, and in appointing new ministers. The PM advised the GG in the nomination of members to the Senate and the House of Representatives.
- Ministry of Defense and Foreign Affairs were under the Prime Minister.

Conclusion (02 marks)

Candidates can conclude the answer with a review on the role of Governor General in Ceylon. For example, though the GG had much powers as stated above, in most cases or often he had to perform and exercise these powers on the advice or in consultation with/ of the Prime Minister. The criticisms about the GG being the representative of the British Crown eventually led to an argument for making Sri Lanka a Republic with the President as the Head of State. There were also occasions of tension between the nominal executive and the real executive. Yet, the overall relationship between the two branches of the executive under the Soulbury Constitution has been one of cooperation. With the First Republican Constitution of 1972, the link between Sri Lanka's nominal executive and the British crown came to an end.

5.(iii). Powers and Functions of the Legislature

Objective

This topic aims to evaluate candidates' knowledge about the Parliament established under the Soulbury Constitution, its powers, and their limitations.

Introduction (02 Marks)

Candidates can begin the answer stating that the Soulbury Parliament's legislative powers were considerably curtailed through the Crown, Governor - General and the minority safeguards. Therefore, it was a parliament without full legislative sovereignty.

Discussion (06 Marks)

- The Soulbury parliament consisted of two chambers – they were the Senate and the House of Representatives. The former was the upper chamber and latter was the lower.
- The structure and elections for the House of Representatives were stipulated in the Article 11 of the Constitution. Thus 95 members were elected through the system of territorial representation. Six members were nominated by the GG from disadvantaged social groups who deserved political representation.
- The tenure of the legislature was five years and the Speaker was its chairman. There were also occasions where the tenure of the legislature could come to end before five years when the annual appropriation bill or the Vote of Thanks on the Thrown Speech was defeated in parliament.

Powers of the House of Representatives

- Enacting necessary laws for "peace, order and good government of the island."
- Overseeing the working of the executive.
- Either accepting or defeating the appropriation bill.
- Introducing financial bills.
- Controlling public finance.

The Senate

- The Senate was the second chamber of the legislature and composed of 30 members.
- Of the members of the Senate, 15 were nominated by the Governor General on the advice of Prime Minister. It was expected that the minorities should be provided priority in the nomination.
- Another 15 members were selected from the House of Representatives through single transferable vote system.
- The Senate was viewed as a mechanism for minority safeguard too.
- The tenure of a member of the Senate was six years. After every two years, one third of the Senate members were replaced by new members.
- The Senate also exercised legislative powers, though they were not effective. It had powers to bring non-fiscal bills to the parliament and to amend the bills placed by the House of Representatives.

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- Approval of the Senate was a requirement to pass the bills and it could delay the normal bills for one year and financial bills for one month. If they exceeded the stipulated time limit, the bills could be passed in the lower chamber and come into force. There were instances when the House of Representatives passed laws without the consent and approval of the Senate.
- Two of the Senate members represented the Cabinet and one of them was to hold the Ministry of Justice.

Conclusion (02 marks)

Candidates can conclude with a brief summary of above discussion and provide a comparison on these two chambers and their role. For instance, comparatively, the Senate was a weak and ineffective body in the legislature and its expectations were not fulfilled due to various reasons as discussed above. In contrast, the House of Representative disregarded the limitations on minority safeguards provided by the constitution and even enacted laws discriminatory of the minorities. There were also severe criticisms of the legislature under the Soulbury Constitution. As a result of these criticisms, the 1972 Constitution re-structured Sri Lanka's legislature. It abolished the Senate and made the legislature unicameral. The House of Representatives was renamed as National State Assembly and all imitations on its legislative powers were removed.

6. Discuss the relationship between the legislature and the executive under the Republican Constitution of 1972.

Objective

This answer assesses the knowledge of students on the relationship between the legislature (the National State Assembly), and the executive, the President and the Cabinet, headed by the Prime Minister-headed Cabinet under the First Republican Constitution of 1972. The answer should also show that the candidate is familiar with the overall constitutional scheme of the 1972 Constitution.

Introduction (03 Marks)

The answer can begin by giving a brief overview of the Constitution of 1972, saying that it was a Republican constitution, yet retained the basic features of the Westminster constitutional model. Thus, the 1972 Constitution had a hybrid character too. According to the Constitution of 1972, parliament was unicameral and therefore there was no Senate. The legislature was named as National State Assembly, and its members were directly elected by the people. It was also the supreme instrument of state power of the Republic. Sometimes this supremacy has been understood by commentators as rejection of the theory of separation of powers by the framers of the Constitution. Under the Republican Constitution of 1972, the executive consisted of two centers, the first headed by the President and it was the Nominal Executive. The other, the Political Executive, consisted of the Cabinet which was headed by the Prime Minister. When analyzing the operation of the Constitution of 1972, the relationship between the legislature and the executive is an important theme.

Discussion (14 marks):

- The 1972 Constitution made Sri Lanka a Republic. However, it was not a fully Republican Constitution since the President was nominated by the Prime Minister. The President was the nominal head of the Executive, and therefore, did not enjoy any real executive powers. The real executive powers were with the Prime Minister and the Cabinet. They were members of the legislature. This reflects the principle that the 1972 Constitution made the legislature more powerful than the President, who headed the Nominal Executive.
- The National State Assembly, which was the legislature under the Republican Constitution of 1972, had supreme legislative power (Article 44). It was the central institution of the governing structure. Article 4 of the Constitution states that sovereignty of the people is exercised through the National State Assembly, which was the legislature. According to Article 5, the National State Assembly was the supreme instrument of state power of the Republic, exercising legislative, executive and judicial power of the people.
- According to the Constitution, the National State Assembly had no authority to abdicate, delegate or in any manner alienate its legislative power (Article 45). This gave the National State Assembly unrivalled powers to make laws.

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- However, the political executive, that is, the Prime Minister and the Cabinet of Ministers, was appointed from the political party or coalition that obtained a majority of seats in the National State Assembly. The political executive, therefore, was a part of the legislature. The Prime Minister and Cabinet ministers were thus political representatives of the National State Assembly.
- It was the responsibility of the Prime Minister to decide the ministries and the subjects allocated for ministers. Thus, the Prime Minister as head of the executive had the full authority to determine the composition of the Cabinet.
- The head of the political executive, the Prime Minister, was a member of the legislature who should command the confidence of the majority of MPs of the National Assembly.
- If the Prime Minister was strong, he/ she could influence the National State Assembly. In practice, the political executive, that is, the Cabinet headed by the Prime Minister, had directly influenced the legislature.
- The National State Assembly had power to pass a resolution of no confidence against the President. Thus, the head of the nominal executive did not enjoy autonomy from the legislature, although he was called the President.

Conclusion (03 marks)

The relationship between the legislature and the executive introduced by the Republican Constitution of 1972 was paradoxical. It created a weak nominal executive, a strong political executive as well as a strong legislature. The political executive was appointed from members of the legislature. Although the National State Assembly was the supreme instrument of state power, sometimes the Prime Minister and the Cabinet of Ministers could over-ride the legislature. An intrinsic principle of the Westminster system which the Republican Constitution of 1972 continued was the origin of the executive from the legislature. Consequently, the legislature and the executive had to cooperate, rather than entering into conflict.

7. Discuss any two of the following in relation to the original 1978 Constitution and the relevant Amendments:

(i) Role of the President as Head of State.

(ii). Powers of the legislature and their limitations.

(iii). Responsibilities of the judiciary in protecting fundamental rights.

(iv). Importance of the Constitutional Council and criticisms leveled against it.

Objective

This question seeks to assess the candidates' subject knowledge and analytical skills on a few key features of the 1978 Constitution.

7.1 Role of the President as Head of the State.

Introduction (02 Marks)

The answer can begin by pointing out that President holds the position of Head of State and at the same time is the head of the government and the Cabinet. This is an unusual constitutional position, which was a clear departure from the Westminster model. Thus, under the 1978 Constitution, president was not a ceremonial position, but a very powerful one. The office of the President was the central institution of state power.

Discussion (06 Marks)

- Under the 1978 Constitution President played several roles. Being Head of the State is one among them. In this sense, the 1978 constitution marked a departure from the 1972 First Republican Constitution.
- Articles 33 and 34 of the 1978 Constitution defines the powers of the President as Head of the State.
    i. Appointment of key public officials such as ambassadors, high commissioners, assigning duties to them, and accepting credentials of ambassadors from other countries.
    ii. Appointing senior lawyers as President's Counsel.
    iii. Appointing the Prime Minister and Members of the Cabinet and other ministers.

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iv. Appointing the Chief Justice, President of the Court of Appeal, and other judges of the Supreme Court as well as the Court of Appeal.
v. Keeping the Public Zeal of the Republic.
vi. Declaring war and peace
vii. Grant pardon to convicted prisoners, either conditionally or without conditions.
viii. Approving or suspending death sentence.
ix. Immunity from civil or criminal proceedings.

Conclusion (02 Marks)

Powers of the President as Head of State are among a wide range of powers available to the President under the 1978 Constitution. There were criticisms that some Presidents had abused some of these powers. Therefore, in response to such criticisms, the 19 Amendment removed or restricted some of such powers

7. (ii) Powers of the legislature and their limitations.

Objective

This topic examines the candidate's knowledge of the powers of the legislature under the 1978 Constitution and their limitations.

Introduction (02 Marks)

The answer can begin by pointing out that the legislature under the 1978 Constitution was named as Parliament, and that it was a unicameral legislature, different from the Westminster model. Similarly, it is also necessary to mention that the legislature under the 1978 constitution differed significantly from the legislature under the 1972 constitution in terms of powers and its relationship with the executive.

Discussion (06 Marks)

The discussion can begin by further elaborating the last point made in the 'Introduction.' The legislature was this brought under the control of the 'Executive President' who was the head of the executive.

The discussion can be organized under two sub-headings: (a) Powers of the legislature, (b) their limitations.

In brief, powers of the legislature are as follows:

- Legislative powers
- Financial powers
- Controlling the Executive
- Powers to amend and abrogate the Constitution.

Limitations

Legislative powers of parliament do not include the powers to suspend or abrogate the constitution or any part of it. The constitution cannot be suspended without enacting a new constitution (Article 75).

If a Bill tabled in parliament is challenged before the Supreme Court for its constitutionality, parliament should follow the advise of the Supreme Court, or pass it only with a 2/3 majority.

Parliament does not have monopoly over law-making. President can also makes laws through the mechanism of referendum (Article 4 (a)).

Although the President is not a member of the legislature. However, being the head of the Cabinet, s/he can influence the legislative process.

Conclusion (02 Marks)

The legislature under the 1978 Constitution differed in many ways from the legislature under the 1972 Constitution. This difference became particularly evident in the place the legislature enjoyed in the state structure. Under the 1978 Constitution, the parliament's legislative powers were controlled by the President who was the head of the executive. Thus, legislature brought under the domination of the executive. There was no separation of powers between the executive and the legislature. This lead to much criticism of the 1978 Constitution. The 19th Amendment changed this unequal equation and made the legislature relatively independent of the executive.

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7.iii Responsibility of the judiciary in protecting fundamental rights.

Objective

This topic seeks to assess the candidates' knowledge on Sri Lanka's judiciary's role in protecting the fundamental rights of the citizens.

Introduction (02 Marks)

The answer can begin with a brief definition of fundamental rights. Candidates an also says that the 1978 Constitution marked a positive departure from the previous constitution with regard to the protection of the rights of the citizens.

Discussion (06 Marks)

The discussion can begin with a brief introduction to the main provisions regarding the fundament rights.

- The Supreme Court has the sole jurisdiction over fundamental rights.
- Article 126 of the Constitution defines the powers of the Supreme Court with regard to fundamental rights and the judicial procedure to be followed. It also says that the Supreme court has the sole jurisdiction over matters relating to the rights specified in the Chapters III and IV of the Constitution. Chapter III deals with Fundamental Rights and Chapter IV on Language Rights.
- A citizen should make an application to the Supreme court alleging that his/ her fundamental rights have been violated, within one month of such violation. A citizen could do this through a lawyer or personally.
- Once such an application reaches the Supreme Court, the Court will first consider whether it warrants an inquiry. Once permission to proceed is granted, the Court conducts an inquiry and then pronounces its determination.
- Although there have been several amendments to the 1978 Constitution, the fundamental rights jurisdiction of the Supreme Court has not been subjected to any change in terms of restricting its powers or authority. The 19th Amendment ensured the independence of the judiciary, free from executive interference. That strengthened the Supreme Court's role in protecting the citizens' rights and freedoms.
- Although the Supreme Court is the sole authority on fundamental rights jurisdiction, there are two other institutions that are entrusted with the task of protecting human rights

of the citizens. They are the Human Rights Commission and the Office of the Ombudsman.

- By protecting fundamental rights of the citizens, the Supreme Court also plays an important role in protecting democracy and the rule of law. Defending the freedom of citizens is a key task of the Supreme Court. For that, the judiciary needs independence from the executive control and influence.

Conclusion (02 Marks)

The 1978 Constitution made the Supreme Court the most important institution with the responsibility of protecting fundamental rights of the citizens. This is an important advance achieved by the 1978 Constitution. The constitution clearly lays down the remedies available to the citizens and the procedures to be followed when their fundamental rights are violated are about to be violated. Sri Lanka's Supreme Court has also earned the reputation for its commitment to protecting the freedom of citizens, rather than the interests of the executive.

7. iv Importance of the Constitutional Council and criticisms levelled against it.

Objective

This topic will assess the knowledge and understanding among candidates of the Constitutional Council created by the 17th and 19th Amendments to the 1978 Constitution. It also assesses the familiarity the candidates have with the public discourse on the role of the Constitutional Council.

Introduction (02 Marks)

The answer can begin by making the point that the Constitutional council was a product of both the 18th and 19th Amendments to the 1978 Constitution. It performs an important responsibility as an institution of checks and balance in the system of democratic governance in Sri Lanka.

Discussion (06 Marks)

A brief account of the composition of the Constitutional Council under the 19th Amendment.

Describing the powers and functions of the Council under the following:

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i. Making recommendations to the President on the appointment of chairpersons of the following independent Commissions: Election Commission, public Service commission, National Police Commission, Audit Service Commission, Human Rights Commission, Bribery Commission, Finance Commission. Delimitation Commission and the National Procurement Commission.

ii. Approval of the recommendation sent by the President for the following posts: Chief Justice and other judges of the Supreme Court, Chairperson and other judges of the Court of Appeal, members of the Judicial Service Commission, Attorney General, Auditor General, Inspector General of Police, Ombudsman and the Secretary general of Parliament.

Criticisms

- Some have criticized the role of civil society representatives in the Council that they, although not elected representatives of the people, have been checking authority and powers of the President.
- There is also the criticism that the balance of power in the composition of the council is favourable to the government.
- By declining to appoint the names recommended by the President to the Judiciary, some have criticized the Council for defying the President's wishes.

Conclusion (02 Marks)

The 'conclusion' can begin with the point that the Constitutional council has made a significant contribution to strengthening democratic governance in Sri Lanka. Under the 19th Amendment, it has always safeguarded the independence of the Council, from the Executive. An important objective of setting up of the council was the safeguarding of the independence of the public service and ensuring its independence from executive control. That was the intention of both 17th and 19th Amendments. Against such a backdrop, criticisms of the Council are to be expected. However, amidst such criticisms, public trust on the Constitutional Council remains strong.

PART III

8. Explain the reasons to describe the Indian federal model of government as a semi-federal system. (20 Marks).

Objective

The aim of this question is to assess the candidate's ability to identify the specific features of the Indian federal model and show how the Indian system represents a specific form of federalism, differing from the other forms of federalism.

Introduction (03 Marks)

The candidate may begin the answer by making the point that the Indian constitutional system of differs from the classical form of federalism. The 'Introduction' may also briefly refer to the background of India's decision to adopt the federal model with modifications during the drafting of the new constitution after political independence of 1947.

Discussion (14 Marks)

- The Indian federalism is sometimes characterized as semi-federal or quasi federal to suggest that it is not a fully federal system.
- India is clearly not a unitary state. The republic is governed by a system of power-sharing which is usually called federal. It has a central government and state governments. The state governments have their own legislative and executive powers. The Constitution in three lists lays down powers of the central government, state governments and also the powers that the centre and the states should jointly exercise
- However, the constitution does not describe the Indian system as federal either. The constitution is silent on the unitary or federal question.
- Among the reasons that have led to this characterization of the Indian system as semi-federal are the following:
    - (i) The constitution does not say whether the Republic of India is unitary or federal;
    - (ii) The emergency powers given to the Center by Article 352 severely curtails the powers of the state governments. According to this Article, the central government has absolute power to preserve the integrity, security and stability of the country in a situation of national emergency.

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(iii) According to Article 356, President can dissolve a state government and bring the state under President's rule.

- The impact of emergency on the federal spirit of the Indian constitution has been very negative. During a state of emergency, the federal nature of the Indian government is suspended and the system of government becomes a unitary.
- There are several ways of subjecting the states to the direct control of the central government. Firstly, the state legislature can be dissolved. Secondly, the Chief Minister and the state Board of Ministers, who are members of the elected state legislature, can be removed from office. Thus the executive branch of the state government is brought directly under the President. Secondly, when the state legislature is dissolved, the parliament at the centre enacts legislation on behalf of the state. Thirdly, the Governor of the state, representing the President, becomes the Head of the State Government.
- There is criticism in India that the Article 356 has been used to dissolve politically hostile state governments by the ruling party at the Centre. This happened during the Emergency when Indira Gandhi was the Prime Minister. The states of Punjab, Kerala an Uttar radish, and ow Jammu and Kashmir have suffered due to such emergency provisions by the central government.
- In pure federal systems, such emergency powers are not usually available to the central government. The autonomy of state governments is specifically guaranteed by the Constitution.
- The different form of federalism that India has adopted has to do with particular historical circumstances such as the British Colonial legacy and the traumatic experience it had undergone with the partition of British India on the eve of political independence. Unity of the Republic and its territorial integrity are foremost concerns that the framers of the federal constitution adopted in 1952 had to accommodate.
- Thus, the framers of the Indian Constitution had to resolve a dilemma; managing enormous diversity while keeping the unity of the nation as a united polity. They had thought that adopting federalism was an effective means of achieving that goal. Yet, they were afraid of division of the country if a fully-pledged federal form of government is adopted for India.
- Consequently, they had incorporated features of both federalism and unitary form of government simultaneously. Parallel inclusion of features of federalism and unitary form of government was thought of as a mechanism of managing the diversity while inclusion

of unitary features were thought of as a mechanism of neutralizing the trends towards division of the country.

- The reasons for describing Indian Federalism as semi-federal lies in the fact that it works as a genuine federal state in normal times and converted into a unitary state or can function like a unitary state during emergencies.
- The other unitary characteristics of the Indian Constitution include the following
  i. Singular or Unitary Citizenship
  ii. Concurrent list of powers to be shared by both the centre and state governments. In this system, the concurrent list of powers is favourble to the centre.
  iii. Ability of the central government to decide territories of the constituent parts of the states unilaterally.
  iv. Ability of the Centre to name, create and change the existing states.
  v. Ability of the central government to enact laws in relation to states' list if the Rajya Sabha (Upper House) consents by a two third majority.

Conclusion (03 Marks)

The 'conclusion' can synthesize the above discussion and then make the point that the Indian model of federalism represents a specific form of federalism in which (i) power sharing between the centre and the states combines both unitary and federal features, (ii) sovereignty is not shared between the centre and the states, and (iii) the states do not enjoy full autonomy all the time and that state autonomy is conditional and restricted.

9. Explain how the contemporary trends in world politics influence the foreign policy of Sri Lanka (20 marks).

Objective

This question aims to assess the candidates' awareness of the contemporary trends in world politics and to assess their knowledge on the influence of such trends on Sri Lanka's foreign policy.

Introduction (03 marks)

Foreign policy of a country is determined by both external and internal factors. Changes in the international environment influence to determine the shape of the foreign policy of countries in the contemporary world. This applies to Sri Lanka too. Sri Lanka's foreign policy is more or less a response to the contemporary regional and global trends. However, the nature of this response

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is determined by country's political and economic capacity as well as the geo-political importance of Sri Lanka in the world map.

Discussion (14 marks)

The geo-political location of Sri Lanka in the centre of Indian Ocean and at the rim of Indo-Pacific water margins provides an enormous attraction of world powers. However, the scarcity and limitations of territorial, economic and political power have impacted to maintain a mild and neutral foreign policy rather behaving an influential member with its geo-political importance.

- Regional Politics - South Asia - Trends in regional politics have been influential in shaping Sri Lanka's foreign policy throughout her post independent history. Sri Lanka was instrumental in developing regional cooperation and the regional organization that is SAARC (South Asian Association for Regional Cooperation). Sri Lanka played an active role in multi-faceted SAARC negotiations until 2015. However, due to various political reasons, the strength of SAARC as the regional organization of South Asia has been reduced in recent times.
- Bi-lateral relations – Sri Lanka, just as the other South Asian countries, is always sensitive to the India's influential role in regional political economy. Political and regime changes and changes of economic policies of India are important factors to shape the themes of Sri Lanka's foreign policy. Disputes among regional nations also to be considered as important factors in making the agenda of bi-lateral relations. Especially, the continuing Indo-Pakistan rivalry is a key point to be considered in deciding the agenda of bi-lateral relations with both India and Pakistan.
- Asia – Asia has gained a growing importance, since several Asian states have become politically and economically influential in determining the nature of world political and economic map. While Japan remains a sophisticated economic giant, both India and China are showing their high levels of trade and economic capacities to the world. However, the other Asian states have to be very diplomatic in dealing with these big economic powers because, disputes within India-China and China-Japan relations are sensitive factors in Asian politics.
- Politics of Indian and Pacific oceans - The Indian Ocean is home to major sea routes connecting the Middle East, Africa and East Asia with Europe and the Americas. These vital sea routes facilitate maritime trade in the Indian Ocean region, carry more than half

of the world's sea-borne oil and host 23 of the world's top 100 container ports. This importance has invited many strategic, economic and trade initiatives in the region. Belt and Route Initiative leads by China, BIMSTEC and IORA led programmes are examples for this development. Sri Lankan foreign policy makers have to keep their eyes on these developments in the Asian waters.

- **Global Politics**

International Balance of Power - The nature of current multi-polar power balance has a direct impact in deciding Sri Lanka's foreign policy. Since, several power bases are on the global ground (e.g.; USA, the EU, BRICS, China, India, Russia), the foreign policy has mostly been balanced in recent times. As a small nation, Sri Lanka has to maintain cordial diplomatic ties with all power centers in the world system.

Ideological politics – Non-Alignment was the most significant ideological stance of Sri Lanka throughout the first three decades after the independence. However, the collapse of bi-polar power balance in the post - Cold War period has challenged the ideals of non-alignment. Since liberal democracy has become the dominant ideological stand point of the world, the foreign policy of small states has shifted to a more west-oriented stance. This trend is observable in Sri Lanka's foreign policy as well.

International political economy – Since the neo-liberal economic and political ideals are in power on the global stage, economic diplomacy has been the most distinguished ideology of Sri Lanka's recent foreign policy. Political diplomacy has come to the stage only as a ceremonial factor or in a situation where the world public opinion or opinion of a powerful nation becomes unfavourable to Sri Lanka.

Alternative international movements and networks – Terrorism, religious fundamentalism, group rights movements (e.g.; LGBT movements, labour movements such as Yellow Vest), new social movements aimed to oust autocratic regimes are influential trends in contemporary world politics. Amidst the sensitivity to the internal public opinion, Sri Lanka has to adjust its external policy perspectives according to these new global trends.

Conclusion (03 marks)

- Sri Lanka continues to remain one of the most globally connected countries. Foreign policy is the instrument that Sri Lanka marks her footprints in such global connections. Though the foreign policy is an extension of a country's internal policy, globalized nature

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of the contemporary international environment has invited a sense of greater sensitivity to the international trends in deciding the foreign policy.

- Political and economic ideological stances in power of world politics play an influential role in providing inputs to the foreign policy especially of small states. This reality is common to Sri Lanka and her representation in world fora is influenced by those ideological factors.

10. Write short notes on any two of the following:

(i) Nationalism
(ii) Secularism
(iii) Conflict Management
(iv) Meanings of the concept of Civil Society
(v) Feminist view of power

10 (i) Nationalism

Objective

This topic is given to assess student's understanding and knowledge about nationalism as a political ideology and its importance as a theme in politics.

Introduction (02 Marks)

The answer can begin by stating that nationalism is a major ideology that provides a vision for organizing the state, political institutions, public policies as well as political struggles in the modern world. Nationalism has also provided the vision for the modern nation-state.

Discussion (06 Marks)

- Nationalism as a political ideology first developed in Europe during the eighteenth century and it later spread to the European colonies.
- Briefly defined, nationalism is the idea that people living in a particular geographical area constitute themselves in cultural and political terms as a larger unit called the nation. As an ideology it provided human communities a consciousness about belonging to a 'nation.'

- For people to belong to a nation, nationalism also says that they should have shared identities. Culture, language, religion, shared territory, and homeland are the key markers of 'national identity.'
- In Europe, the modern nation-state formation after the French revolution of 1789 was inspired by the idea of the nation as a unified political community with a shared culture and a common identity for all the citizens within the territorial limits of the state.
- As a political ideology, nationalism plays the following roles:

i. It gives a people who are organized within a nation-state as a political community a common identity and a sense of belonging as a single community. It is nationalism that provides them the ideological and conceptual framework to think about themselves as a nation.

ii. Nationalism also has provided people along with shared identities a vision and guidance for political action. For example, in the colonial world, people waged 'liberation' or 'independence' struggles inspired by the ideas of nationalism and visions of a free nation.

iii. Nationalism is also an ideology and a political vision for small ethnic groups who live within multi-ethnic nation states. Inspired by the idea of nation, they often make the point that they are not minorities to be marginalized, but 'nations' with equal political and other rights.

iv. The foundational principles of modern nation-state are based on nationalist ideology. The concepts of national sovereignty, national independence, territorial unity, cultural unity and citizenship are fundamentally influenced by the modern ideologies of nation.

Conclusion (02 Marks)

The answer can end by highlighting the continuing importance of nationalism playing multiple roles in modern politics. This can be observed in Sri Lanka where nationalism continues to play a major role in politics.

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Such political roles of nationalism include being (a) an ideology for the nation and the state, (b) a vision for members of a political community to stay together by feeling that they have a shared political destiny, (c) a framework of belonging to a common nation, and (d) a guide for political action. Modern politics cannot be properly understood without taking into account the crucial role nationalism plays in national and world politics.

10. (ii) Secularism

Objective

This topic seeks to test the candidate's knowledge and understanding about the role that religion plays in politics and the perspectives offered by the concept of secularism. The answer should also demonstrate the knowledge about the origin of the concept of secularism, its liberal and socialist conceptualizations and the Indian contribution to the further development of the concept of secularism.

Introduction (02 Marks)

The answer can begin by saying that religion is a major theme in politics in the contemporary world, and in Sri Lanka as well. Secularism is not an argument against religion. Rather, its central idea is that religion and politics should not be mixed.

Discussion (06 marks)

- Origin of the concept of secularism was in Europe during the 18th and 19th centuries.
- It was also a part of the European Enlightenment thought. Therefore, it has influenced liberalism and socialism as well. It first emerged as an ideology among those who fought against the 'unholy' alliance between the Catholic Church and the state.
- Another source for the emergence of secularism in Europe is the resistance to the intellectual domination exercised by the church over society. These struggles emphasized reason as opposed to religious dogma maintained by the church.
- These struggles provided inspiration for both liberal and socialist theories of secularism. Both argued for separation of the church and the state.
- Main principles of liberal secularism:
    i. Institutional separation of the church and the state.

ii. The state should not identify itself with any religion.
iii. The state should not involve in propagating or teaching religion.
iv. The state should not align itself with or oppose any religion.
v. Religious freedom should be a fundamental right of citizens.
vi. No citizen should be discriminated against on the basis of religion.

Main principles of Socialist secularism:

i. The state should be totally separated and detached from religion. It should be a secular state.
ii. Religion can exist only with the permission of the state.
iii. Religious institutions can exist only as long as they are not a threat to the state and they have permission to function.
iv. Political or civic association should not be based on religious identity.

- The liberal and socialist secularism are of European origin, and therefore they reflect the historical experience of Europe. There is another tradition of secularism in India which is more relevant to Sri Lanka.
- The modern Indian secularist thought has been inspired by Buddhism, Hinduism, Jainism, King Dharmasoka's thought as well as the teachings modern Hindu thinkers such as Ramakrishna Paramahansa and Swami Vivekananda. Mahatma Gandhi, Sarvapalli Radhakrishnan, Jawaharlal Nehru and Rajendra Prasad were its main political thinkers.
- Main principles of Indian secularism:
  (i) Dharma Nirapekshatha – State neutrality for all religions
  (ii) Sarva Dharma Samabhavatha – Equal treatment to all religions and acceptance of all religions to be equal.
  (iii) The state should treat all persons equally without consideration for religious identity.
  (iv) In granting citizenship, religion should not be a criterion or an obstacle.

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Conclusion (02 Marks)

The conclusion can summarize the main discussion pointing out that the concept of secularism redefines the relationship between religion and state in a neutral manner. Secularism is not an argument for being anti-religious. It does not say that religion should not get involved in society. Its emphasis is on the state neutrality to religions, while protecting the right of people to believe in and practice any religion without being discriminated against. It also argues that religion and politics should be separate domains.

The answer can end by suggesting that the Indian concept of secularism has more relevance to Sri Lanka and the modern world.

10 (iii) Conflict Management

Objective

This answer intends to examine the candidates' familiarity with the process of conflict resolution and also the understanding of the concept of conflict management.

Introduction (02 Marks)

Conflict resolution is usually a long and difficult process. It can be observed in inter-personal as well as social and political conflicts. Even though complete resolution of a conflict is difficult, there are other ways to approach and handle a conflict positively. Conflict management is one of such positive approaches to conflict that seeks to mitigate the intensity and escalation of conflict.

Discussion (06 Marks)

- The discussion can begin by describing briefly different positive approaches to conflict resolution, which are as follows:
    i. Early Warning: Identification of possible conflicts in society before they surface. This enables to take steps to prevent them developing at the initial stage when the signs of a conflict become visible.
    ii. Conflict Prevention: After identifying possible conflict through mechanisms of early warning, taking steps to prevent them from forming and developing.

iii. Conflict Management: Preventing the spread and limiting the scope of the conflict once it is formed.

iv. Conflict Transformation: Taking steps to resolve the conflict by transforming its goals, rules, structures and agenda.

v. Post-conflict Peace-Building: Taking steps to prevent the conflict occurring again after the conflict comes to end through a peace agreement or unilateral victory to one side. Peace building requires many measures of reconciliation and addressing and eradicating the root causes of the conflict.

- The next stage of the answer is describing what conflict management is and comparing it with the goals of conflict resolution.
- The concept of conflict management has two meanings:

i. When the resolution of a conflict is a difficult and long-term task, steps need to be taken to prevent its spread and intensity. This approach does not address the root causes of the conflict. This approach considers the conflict as a negative and destructive event that needs to be controlled and managed to neutralize its negative consequences.

ii. The second meaning does not consider conflicts as necessarily negative. It sees the conflict in a positive light, as an indication that the conflict is an expression of social grievances or shortcomings in the existing system that requires solutions. This suggests that the path of the conflict should be re-directed along democratic and peaceful means such as discussions, negotiations, dialogue and eventual peace agreements.

- Both these meanings of conflict management and the two approaches they propose expect the prevention of conflict from developing it into violence and eventually a destructive crisis.
- Comparing conflict management with conflict resolution enables us to understand that conflict management has a limited agenda and limited goals. Conflict resolution requires addressing root causes of the conflict and taking actions to prevent its recurrence. It has a bigger agenda. It requires not only peace agreements and terminating the conflict, but also a long process of post-conflict peace building. Conflict management does not wait for a conflict to escalate. It attempts to manage its intensity through peaceful and democratic means.

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Conclusion (02 Marks)

Conclusion can begin by summarizing the above discussion and pointing out that conflict management is a low cost approach to handling personal as well as social conflicts. It is always better to manage conflicts than allowing them to escalate and then produce destructive consequences. Once a conflict reaches that stage, its management is also difficult.

10 (iv) Meanings of the concept of Civil Society

Objective

This topic seeks to assess the extent to which candidates have an understanding of the theoretical foundations of the notion of 'civil society.'

Introduction (02 Marks)

The Introduction can begin with a basic definition of 'civil society' as the social space within which citizens collectively come together for their common interest and goals. It can also say that citizen's activism in civil society is an important aspect of modern politics. It is an important concept of in modern democratic theory as well.

Discussion (06 Marks)

- In its conceptual history, civil society has had four meanings: Classical liberal, classical Marxist, associational democratic and neo-Marxist Gramscian.

i. Classical Liberal meaning: Civil society is the social space between the state and the family. Immanuel Kant and Hegel were its key thinkers. Hegel further said that civil society is the domain of capitalist market where the individual freedom begins and flourishes.

ii. Classical Marxist Meaning: Karl Marx, who developed this meaning, used Hegel's meaning of civil society as the capitalist market. However, he criticized it severely arguing that civil society is not the space for human freedom. Marx was a strong critic of capitalism and the capitalist market. It is where selfish interests of human beings get manifested through market competition. Thus, in civil society individuals find themselves as lonely, isolated human beings, not able to achieve the true human potential.

iii. Civil society as the sphere of associational democracy: According to this meaning, civil society is the space in which citizens organize themselves independent of the state and government to attend to the common needs of citizens. They do this by forming various citizens' societies or associations. It was a French political thinker Alexis de Tocqueville who first outlined this idea in his concept of associational democracy.

iv. Neo-Marxist Gramscian Meaning: Antonio Gramsci was an Italian Marxist. In his writings during the 1930s, Gramsci defined civil society as the social space between the state and citizens within which people have their cultural and social activities. It is this this social and cultural sphere that the ruling classes establish their domination in order to secure their political 'hegemony.' According to Gramsci, by establishing dominance over civil society, the ruling classes secure people's consent to their rule. Religion, culture, education are the civil society domains on which the ruling classes always seek to establish their leadership. Thus, schools, trade unions, sports associations, the church or religious institutions, media, cultural association etc. are components of civil society.

- There is also a contemporary meaning of civil society as space for democratic political activism of citizens, outside the state and government. In any society, trade unions, workers, peasants, student groups, and social movements of citizens engage in protests, agitations, and demonstrations in order to make demands from government. Thus, civil society is also defined as the social space for citizens' autonomy outside the state.

Civil society activism is considered as an aspect of democratic political life. Such activism is described in contemporary political theory as 'civil society politics.'

Conclusion (02 Marks)

The answer can end by summarizing the above discussion and making the point that meanings of civil society have evolved in accordance with historical conditions and that the idea of civil society is a major concept in modern theory of democracy. In contemporary political theory, civil society is defined in its associational sense and as the space for democratic political activism of citizens.

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10 (v) Feminist View on Power

Objectives

This topic aims at assessing the candidates' understanding of feminist's perspectives on power and their contribution to broaden the understanding of power and politics. It also assesses students' familiarity with the basics of feminist political theory.

Introduction (02 Marks)

The Feminist theory critiqued the traditional approaches in theorizing power in Political Science and introduced an entirely new perspective on power and its practice in human society. The feminist political theory argues that both the conceptualization and institutionalization of power have been structured from a male-centric perspective. Thus, feminism has proposed an understanding of power from the perspectives of gender. This answer should demonstrate that the candidates are aware of the basic aspects of gender based-approach to power in political theory. The 'Introduction' should also say that the feminist theory of power is connected with the feminist theory of politics.

Discussion (06 Marks)

- Ideas on power in feminist theory do not demonstrate uniformity. Those ideas vary on the basis of different ideological stances in different strands of feminism. The most important contribution of the feminist critique on power is analyzing the power in the private sphere in a broader sense.
- Liberal feminists view power from a positive perspective. Some liberal feminists view power as a resource and suggest that power should be equally redistributed so that women will have power equal to men.
- Radical feminists tend to understand power in terms of dominance/subordination, as in the relationship between the master and the slave. They assert that that the patriarchal construction of the difference between masculinity and femininity is the political difference between freedom and subjection.
- Socialist Feminists have argued that power and domination have traditionally been associated with masculinity. Thus, power has been understood from the position of the socially dominant — the ruling class and men. Therefore, the feminist task has been to

re-conceptualize power from a specifically feminist standpoint. That approach should be rooted in women's life experience, specifically, their role in reproduction.

- Feminists also view power as central to politics, but they have specifically focused on explaining how power exists in the way women are subordinated in male-dominated social, political, economic and cultural institutions and practices.
- A key contribution made by feminist theory to the political science approach to power is that politics as power exists not only in the public domain, but also in the personal, private domain. The feminist formulation, 'personal is political' is the clearest statement of this theoretical position.
- The formula, 'personal is political' shows how power and politics exists in the private sphere, that is, the family and personal relations as well. The traditional political science since the Greek political thought assumed that politics exists only in the public sphere, that is, outside the family. Feminists challenged this view and showed that politics in the private sphere takes place in two main ways. (i) The state and public policy as well as the law regulate and control family relations, women's body, marriage and women's and children's property rights. Thus the private domain is not free of state control, (ii) Within the family too, there is male—female relationship defined by power relations of domination and subordination.

Conclusion (02 Marks)

The feminist theory of power is closely linked to the feminist theory of politics. The gender approach to power and politics developed in different ways in the feminist theory has radically altered the traditional political science approach to both power and politics.

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